

priority claim based on an invention disclosure at an exhibition must fail in the case in hand.

2.5. Postdating of the previous application

Swiss patent law formerly allowed a patent application to be postdated if it was subsequently amended. In T 132/90 the patent proprietor had claimed 11.3.1983, the original filing date of the earlier Swiss application, as the priority date for his European application dated 9.3.1984. In 1985 the Swiss Patent Office ordered that the filing date of the Swiss patent application be set at 1.7.1983 following subsequent completion of the technical documentation. The board concluded that the original application should serve as the basis for claiming a priority right and that the priority date was the filing date of the original application. The postdating order did not take effect ab initio, and the subsequent fate of the original application was immaterial as far as the priority date was concerned.

2.6. Multiple exercise of the right of priority for one contracting state

According to the board in T 998/99 (OJ 2005, 229), Art. 87(1) EPC 1973 made no provision for multiple filings in the same country within the priority period for the same subject-matter and hence the same invention on the basis of the same priority document. However, in subsequent decisions this strict approach was rejected.

Thus, in T 15/01 (OJ 2006, 153) the board pointed out that, with respect to the issue of exhaustion of priority, the wording of Art. 87(1) EPC 1973 appeared to be open to different interpretations. Since the EPC constituted a special agreement within the meaning of Art. 19 of the Paris Convention, this provision was not intended to contravene the basic priority principles of this Convention. The Paris Convention in its present version explicitly recognised the possibility of claiming multiple and partial priorities and guaranteed the right to divide patent applications while preserving the benefit of the right of priority for the divisional application as well (principles also recognised in Art. 76(1), second sentence, EPC 1973 and Art. 88(2) and (3) EPC 1973). The board considered that the priority provisions of the Paris Convention had to be construed in a manner which ensured that the general purpose they served, namely to assist the applicant in obtaining international protection for his invention, was fulfilled as far as possible. The board also examined the circumstances under which the issue of exhaustion might arise (splitting up of the subject-matter of the priority application to avoid non-unity objections; filing of a deficient subsequent application and remedying it by means of a second filing; combination of the originally disclosed subject-matter with further improvements and additional embodiments developed during the priority period) and analysed the interests involved. It concluded that the same priority right might be validly claimed in more than one European patent application; there was no exhaustion of priority rights. In T 5/05 the board again confirmed that neither the EPC nor the Paris Convention contained any indication that the right of priority constituted an exception which had to be interpreted narrowly and thus allowed the right of priority to be exercised only once for one contracting state. These decisions were followed in T 1562/06.

3. Identity of invention

In accordance with Art. 87 EPC a European patent application is only entitled to priority in respect of "the same invention" as was disclosed in the previous application. See also Art. 88(2) to (4) EPC.

3.1. Disclosure in the previous application of the invention claimed in the subsequent application

3.1.1 G 2/98 – interpretation of "the same invention"

In G 2/98 (OJ 2001, 413), the Enlarged Board of Appeal, ruling on points of law referred by the President regarding the interpretation of Art. 87(1) EPC 1973, addressed the concept of "the same invention" in this provision. It first considered whether interpreting "the same invention" narrowly was consistent with the relevant Paris Convention and EPC 1973 provisions. A narrow interpretation meant that the subject-matter of a claim which defined the invention in a European patent application – i.e. the specific combination of features in that claim – had to be at least implicitly disclosed in the application whose priority was claimed. The Enlarged Board held that a broad interpretation, distinguishing between those technical features which related to the function and effect of the invention and those which did not – with the result that an invention could still be considered "the same" even if a feature were amended, deleted or added – was inappropriate and prejudicial to a proper exercise of priority rights. To ensure a practice fully consistent, *inter alia*, with equal treatment for applicants and third parties, legal certainty and the principles for assessing novelty and inventive step, "the same invention" had to be interpreted narrowly and in a manner equating it to "the same subject-matter" in Art. 87(4) EPC 1973. This interpretation was underpinned by the Paris Convention and the EPC 1973, and was entirely consistent with opinion G 3/93 (OJ 1995, 18).

The Enlarged Board therefore ruled that the requirement for claiming priority of "the same invention", referred to in Art. 87(1) EPC 1973, means that priority of a previous application in respect of a claim in a European patent application in accordance with Art. 88 EPC 1973 is to be acknowledged only if the skilled person can derive the subject-matter of the claim **directly and unambiguously**, using common general knowledge, from the previous application as a whole. The subject-matter of the claim defining the invention in the European application has to be understood as "the specific combination of features present in the claim".

3.1.2 G 2/98 and the concept of disclosure – interpretation in the same way as for Art. 123(2) EPC

It may be noted that following G 2/98 (OJ 2001, 413) the older case law which devised the "**disclosure**" test still applies (see e.g. T 184/84, T 81/87, OJ 1990, 250, T 469/92, T 269/93, T 77/97). In T 311/93 and T 77/97 in particular, the boards applied the criterion of at least implicit disclosure used for the disclosure test under Art. 123(2) EPC 1973. On the other hand, G 2/98 rejected the approach taken in T 73/88 ("Snackfood", OJ 1992, 557; cf. also e.g. T 16/87, OJ 1992, 212; T 582/91; T 255/91, OJ 1993, 318;

T. 669/93; T. 1056/93 and T. 364/95), according to which adding non-essential and merely scope-limiting features did not invalidate a priority claim; see also "Case Law of the Boards of Appeal of the EPO", 3rd ed. 1998, p. 228 et seq. and 235 et seq.). The non-applicability of the "essentiality" criterion following G. 2/98 was confirmed in e.g. T. 1852/13 (with further references) and T. 2466/13.

As was stated in G. 2/98 (OJ 2001, 413), the extent of the right to priority is determined by, and at the same time limited to, what is disclosed in the priority application. Applying G. 2/98, the board in T. 923/00 found that the application as filed and the priority document were in essence identical. It emphasised that any conclusion in favour of or against the amendments' allowability under Art. 123(2) EPC 1973 would also apply in favour of or against entitlement to the claimed priority, and dealt with both issues jointly.

In its subsequent "disclaimer" decisions G. 1/03 and G. 2/03 (OJ 2004, 413 and 448), the Enlarged Board held that in order to avoid any inconsistencies, the disclosure as the basis for the right to priority under Art. 87(1) EPC 1973 and as the basis for amendments in an application under Art. 123(2) EPC 1973 has to be interpreted in the same way. That meant that a disclaimer, not providing a technical contribution as outlined, which was allowable during the prosecution of a European patent application does not change the identity of the invention within the meaning of Art. 87(1) EPC 1973. Therefore its introduction is allowable also when drafting and filing the European patent application without affecting the right to priority from the first application, which does not contain the disclaimer (see also T. 175/03 and T. 910/03). The Enlarged Board reaffirmed the importance of applying a uniform concept of disclosure in its further "disclaimer" decisions G. 2/10 (OJ 2012, 376) and G. 1/16 (OJ 2018, A70) – cf. "gold standard" disclosure test. See also T. 437/14 of 12 March 2019, reported in this chapter II.D.5.3.3, and T. 600/16.

For the application of the disclosure test in the context of Art. 123(2) EPC, see chapter II.E. "Amendments".

The following qualification was made in T. 282/12, a case which concerned "partial priority" (cf. also G. 1/15, OJ 2017, A82): assessing priority by performing a test under Art. 123(2) EPC could lead to wrong conclusions in certain circumstances because the concept of "partial" validity of an amendment does not exist, whereas "partial priority" does (see also fuller summaries in chapters II.D.4.1. and II.D.5.3.3 below).

3.1.3 Disclosure in the previous application as a whole

G. 2/98 (OJ 2001, 413) stated that pursuant to Art. 4H Paris Convention, priority may not be refused on the ground that certain elements of the invention for which priority is claimed do not appear among the claims formulated in the application whose priority is claimed, provided that the application as a whole specifically discloses such elements. Priority for a claim is to be acknowledged if the subject-matter of the claim is specifically disclosed, be it explicitly or implicitly, in the application documents relating to the disclosure, in particular, in the form of a claim or of an embodiment or example specified in the description of the application whose priority is claimed. Art. 88(4) EPC corresponds almost literally to Art. 4H Paris Convention.

In earlier decisions it was likewise held that, under Art. 88(4) EPC, it suffices if the features claimed in the later application are disclosed by the earlier application taken as a whole (T 184/84, T 497/91 and T 359/92).

If the priority document does not include any claims, this does not mean that the conditions of Art. 88(4) EPC are not fulfilled; Art. 88(4) EPC cannot be construed as meaning that a priority document must comprise claims in order to form a regular national filing within the meaning of Art. 87(3) EPC which can give rise to a right of priority (T 469/92). While in such a case it could be more difficult to establish whether the priority document discloses the same invention, the principles of G 2/98 equally apply (T 1437/10). See also e.g. T 525/13, in which the right of priority claimed from a US provisional application was held invalid.

In T 515/00 the board further noted that comparing the claim with the corresponding claim of the previous application was not a valid approach (see also summary in this chapter II.D.3.2.).

T 409/90 (OJ 1993, 40) showed that a broad claim in the previous application was not necessarily a suitable basis for a priority right. When considering what was disclosed in a priority document's claim it was necessary to bear in mind the purpose of the claim, i.e. to define the protection sought. The fact that a claim in a priority document was broad enough to cover specific subject-matter filed for the first time in a later application was not by itself sufficient evidence that such subsequently filed subject-matter had already been disclosed in the priority document, or that subsequent claims based on the later-filed subject-matter still defined the same invention as that which was the subject of the priority document (see also T 77/97, summarised in chapter II.D.3.1.8 below).

Features of the invention may also be disclosed in the drawings (T 169/83, OJ 1985, 193; T 837/13; also T 1434/13, in which the drawings of the priority document were found not to show all the alternatives of claim 1).

In T 449/04 the board emphasised that the "same invention" considered in Art. 87(1) EPC 1973 did not encompass the comparative example(s) which were clearly and definitely **excluded** from the scope of the invention in an earlier application of the applicant (see also fuller summary in this chapter II.D.4.1.).

3.1.4 Reference to common general knowledge

The priority of a previous application in respect of a claim in a European patent application in accordance with Art. 88 EPC is to be acknowledged only if the skilled person can derive the subject-matter of the claim directly and unambiguously, using common general knowledge, from the previous application as a whole (G 2/98, OJ 2001, 413).

According to earlier decision T 136/95 (OJ 1998, 198), a patent application is a technical document, addressed to the skilled person, not a work intended for the general reader. However, the skilled person is not familiar, unlike in the assessment of inventive step, with all the prior art, but only with those elements of it which form part of his general knowledge,

and it is on the basis of this knowledge, or by carrying out simple operations derived from it, that he may infer whether or not there is identity of invention. In the case in question a **structural feature** claimed in the European application was supported by a **general functional feature** described in the prior application.

Applying G 2/98 (OJ 2001, 413), the board in T 744/99 held that the application of common general knowledge could only serve to interpret the meaning of a technical disclosure and place it in context; it could **not** be used to **complete** an otherwise incomplete technical disclosure. In the case in hand, since the priority document only disclosed a new signal protocol without any disclosure of a suitable receiver, claim 8 of the subsequent application, which was directed to such a receiver, was not entitled to the claimed priority date.

In T 1312/08 the patent proprietor had submitted that the definition of "PU" was correct in the patent in suit but erroneous in the priority document. The board, referring to the established jurisprudence, stated that the reworking of an example and especially of a method which was not a standardised one and was not reported in encyclopaedias, textbooks, dictionaries and handbooks could not be considered to be the application of common general knowledge. The mere fact that it was necessary to carry out a test, which was not part of common general knowledge, in order to find out whether the definition of PU in the priority document was erroneous made it clear that the different definition of PU used in the patent in suit was not derivable directly and unambiguously, using common general knowledge, from the whole content of the priority document. See also T 1579/08.

3.1.5 Explicit or implicit disclosure of the features of the invention in the priority document

In G 2/98 (OJ 2001, 413) the Enlarged Board stated that priority for a claim, i.e. an "element of the invention" within the meaning of Art. 4H Paris Convention, is to be acknowledged if the subject-matter of the claim is specifically disclosed, be it explicitly or implicitly, in the application documents relating to the disclosure, and priority can be refused if there is no such disclosure.

Already in decision T 81/87 (OJ 1990, 250), it had been held that, although no identical wording was required, the disclosure of the essential elements, i.e. features of the invention, in the priority document, must either be express, or be directly and unambiguously implied by the text as filed (see also fuller summary of T 81/87 in chapter II.D.3.1.6. below; see also T 184/84). T 81/87 has been followed in numerous decisions, both before and after G 2/98 (e.g. T 301/87, OJ 1990, 335; T 296/93, T 479/97, T 342/98).

a) Example cases – features of the invention all disclosed in the priority document

In T 289/00 the contested feature of Claim 1 was that a channel was enclosed on all sides. The board accepted that the reference in the priority application to the channel as "filled with air" did not in itself mean that it was enclosed. However, the reference had to be seen together with the other information on this matter which the skilled person would derive from the application (cf. Art. 88(4) EPC 1973). A skilled person considering the priority